

Privatizing farm worker justice: Regulating labor through voluntary certification and labeling

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Abstract

This paper assesses the possibilities and limits of efforts to incorporate social accountability into California agricultural production through voluntary certification and labeling, in the context neoliberal governance. We argue that, in its contradictory role as market mechanism, regulatory form, and social cause, certification both resists neoliberalization of the agro-food system and reinscribes neoliberal thinking. Unlike more traditional forms of social justice organizing, which have historically sought to alter power relations between labor, capital, and the state, the very notion that production conditions can be regulated through voluntary, third-party monitoring and labeling embraces several key neoliberal principles: the primacy of the market as a mechanism for addressing environmental and social ills, the privatization of regulatory functions previously reserved for the public sphere, and the assertion of the individual rights and responsibilities of citizen–consumers. Interviews with certification actors lead us to conclude that the strategic embrace of certification is driven by contradictory motivations within the movement for social accountability in agriculture, which can only be understood in relation to the confluence of a broader neoliberal political–economic order with California’s particular arrangements of farm labor politics and agro-food activism. Specifically, agro-food consolidation, rollback of protective labor regulation, the evisceration of the farm worker movement, and the conservative agrarianism of the sustainable agriculture movement intersect to circumscribe the realm of possibility and create conditions that undermine farm worker representation in the governance of agricultural labor practices.

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1. Introduction

This paper assesses the possibilities and limits of efforts to incorporate social accountability into California agricultural production through voluntary certification and labeling. Unlike more traditional forms of social justice organizing, which have historically sought to alter power relations between labor, capital, and the state, the very notion that production conditions can be regulated through voluntary third-party monitoring and labeling embraces several key neoliberal principles: the primacy of

the market as a mechanism for addressing environmental and social ills, the privatization of regulatory functions previously reserved for the public sphere, and the assertion of the individual rights and responsibilities of citizen–consumers. Through the lens of neoliberal governance we analyze the ways in which the discourse and strategies of third-party social certification actors constrain the realm of possibility for substantive change in agricultural production relations at the same time that they attempt to challenge an increasingly neoliberal agro-food system.

We focus on the ways in which California’s particular social, political–economic and institutional arrangements articulate with broader forces of neoliberal capitalism to produce a circumscribed realm of possibility for certification actors. The emergence of certification as a strategy for

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achieving social justice in agriculture is, we argue, simultaneously shaped by current political possibilities under neoliberal rollback, a reaction to the material consequences of the project of neoliberal capitalism, *and* a reinforcement of neoliberal ideology. Based on a series of interviews and participant observation, we find that activists' thinking about certification articulates in ways that both reflect and reproduce the circumscribed realm of possibility in which they operate. This process is fueled by social certification actors' inability (or refusal) to either acknowledge or address structural differences between farmers and farm workers. Ultimately, we question the extent to which social certification can adequately represent farm worker interests or serve as a lever for altering power relations between agricultural labor and capital. Given its reliance on third-party monitoring to drive consumption patterns and its failure to meaningfully involve farm workers, social certification has the potential to undermine notions of collective action and rationalize further state withdrawal from regulating farm labor conditions.

To develop our argument about the contradictory role that certification plays, in its function as market mechanism, regulatory form, *and* social cause, we first explicate the regionally specific constraints produced by agricultural restructuring, the evisceration of the regulatory state, and the decline of agricultural unionism in California. We then trace the emergence of social certification as a voluntary, privatized mode of governance that largely accepts neoliberal imperatives for a flexible, decentralized, and market-driven regulatory framework. Finally, we explore the variety of motivations and perspectives involved in activists' embrace of third-party certification as a means to contest the erosion of labor standards in agriculture.

2. California's neoliberal context

This section explores the development of California agriculture's current political-economic framework, situating third-party social certification in the state's broader history of agricultural production relations and resistance. We treat the certification case as an "actually existing neoliberalism" (Brenner and Theodore, 2002) and suggest that agro-food case studies can contribute to the growing body of literature exploring the unevenness and particularity of neoliberalization processes by considering how broader neoliberal technologies articulate with local circumstances. Recognizing that the term neoliberalism has come to signify multiple, complex, and often contradictory trajectories and outcomes, we refer to neoliberalism as neoliberal capitalism, reflecting its function as a political economic order facilitating the current phase of capital accumulation (Heynen and Robins, 2005, also see Castree, 2007).

Viewing neoliberalization as an uneven and contingent process, as opposed to a fixed or totalizing force (see Brenner and Theodore, 2002; Jessop, 2002; Harvey, 2003; Heynen and Robins, 2005), we suggest that this conjuncture

between the political economic project of neoliberalization and the particular local history of repressive and racialized labor relations has produced a highly circumscribed realm of possibility for future organizing in California agriculture. What's interesting in this case is how neoliberal policy, specifically in the realm of labor and immigration, and powerful agribusiness interests intersect with the United Farm Workers (UFW) union's failure to affect outcomes for some of California's most vulnerable workers. This reality is central to our consideration of the rise of certification and labeling schemes, as the question of the extent to which consumption politics might undermine or complement collective action and political strategies must be considered within this context.

It is important to note that California agriculture has developed from inception according to the capitalist logics of accumulation and competition. California growers have pioneered productivist farming technologies, flexible labor practices, and effective modes of political organization, in part as a result of the state's historical lack of pre-capitalist farming and high levels of class solidarity among large and small farmers alike (Walker, 2004). Successive waves of migrant workers have been recruited to fuel a highly productive, labor intensive accumulation regime in California's fields, where processes of differential racialization solidified repressive labor practices (Almaguer, 1994; Mitchell, 1996; Henderson, 1998). Historically, the state apparatus has been utilized to subsidize agribusiness interests, from the initial commodification and distribution of land, to subsidization of land improvements (especially water) and technical assistance through the land grant universities, to the management of labor flow. The persistence of public subsidies in the agricultural sector underscores the unevenness of neoliberalization processes in this sector produced, in part, by the disconnect between neoliberal rhetoric and on the ground practice.

California's history of wage labor relations to meet labor-intensive production demands has also made it an important location of labor resistance. The specific trajectory of class struggle in California's fields must be understood as interacting with the broader assault on labor under recent agricultural restructuring and regulatory shifts to shape the current context in important ways. Class struggle in the fields became increasingly protracted during the early decades of the twentieth century (McWilliams, 1939; Almaguer, 1994; Mitchell, 1996; Walker, 2004). But it was not until the end of the Bracero Program in 1964 that the United Farm Workers Union (UFW) made major inroads organizing farm labor. Grower recalcitrance and political shifts during the 1970s¹ led the UFW to turn to the political arena, winning passage of California's Agricultural Labor Relations Act (ALRA) in 1975. The act created an opening for collective action that led to increased union

¹ Specifically, the election of a Democrat sympathetic to farm worker issues to the Governor's Office.

density and improved wages and working conditions in the fields over the following decade (Daniel, 1995; Wells, 1996).

Agribusiness mounted a vigorous response, which took multiple forms: externalizing risk through increased use of farm labor contractors (FLC's);² political organizing to ensure that the Agricultural Labor Relations Board would not deliver sustained protections for farm worker organizing and collective bargaining; making modest improvements in the fields to undermine the UFW's demands; and engaging in all manner of standard and reliable union-busting techniques (targeted and mass firings, plowing fields under, violence). None of these responses was unique to the neoliberal phase of capitalism.³ However, together they interacted with a broader set of political and economic phenomena and active retrenchment efforts to undermine farm workers' hard-fought gains and to erode wages and working conditions in California's fields during the following decades. Statewide average annual earnings for agricultural workers stagnated (at \$8500 for labor employed directly and \$5000 for labor employed by FLC's) between 1991 and 2001, representing a 32% decline in inflation-adjusted dollars (Kahn et al., 2005).

The extension of protective labor legislation and subsequent gains due to unionization coincided with the expansion of environmental and food quality regulations and a global agricultural crisis. Facing an accumulation crisis during the 1970s, increasingly concentrated agro-food multinationals sought a "spatial-fix", which entailed economic restructuring, deterritorializing production, and the export of devaluation (see Harvey, 2001). This process undermined the position of farmers within increasingly global commodity chains, due to consolidation into off farm sectors, most notably concentration of control in the hands of retailers and shippers. This reality, combined with California's position as a high cost production location (in particular due to land values) within an increasingly global agro-food economy, has sharply increased pressures to contain costs with respect to labor, by reducing wages at home and by shifting production to lower cost locations.⁴

A rightward political shift at the national and state levels⁵ and the rise of neoliberal trade rules internationally has undermined traditional regulatory and safety net regimes. The state's move away from enforcement of protective labor legislation has been accompanied by shifts in national border and immigration policy towards more punitive and

intrusive forms of public intervention, in the form of border militarization and INS raids on immigrant communities. Most disturbing about this roll-out of neoliberal immigration policy (see Peck and Tickell, 2002) is that it effectively provides a state-sponsored tool for employers to eliminate recalcitrant workers. Since the Immigration Reform and Control Act (IRCA) in 1986 regularized the status of millions of immigrants and bolstered the bargaining position of farm workers, federal immigration policy has focused almost exclusively on enforcement. Particularly striking in the current scenario is the significant public investment in enforcement technologies (border fences, detection equipment, and detention facilities) and labor (border patrol, stationing of National Guard troops at the border), and the conflation of immigration and border enforcement functions.⁶

Historically, immigration policy has served as a mechanism, not only for managing labor flow, but for actively producing an "other", in this case a labor force that can be viewed as undeserving of the rights and benefits afforded citizen workers and that can be scape-goated during periods of economic downturn. Yet, despite recent efforts to further criminalize immigration, unprecedented waves of immigrant laborers enter the US and California annually.⁷ Current estimates place the population of undocumented immigrants in the US at 12 million nation-wide and 2.4 million in California. Representing anywhere from 50 to 80 per cent of California's on-farm workforce,⁸ Mexican migrants comprise an underground labor market underpinning California's highly profitable agricultural economy. Their precarious legal and economic position pose particular problems for efforts to promote farm worker justice, whether in the form of unionization or third-party monitoring, as workers are reluctant to risk the exposure to retaliation. We do not, however, suggest that immigration and seasonal work status are *the* decisive factors limiting workers' agency and undermining collective action efforts.⁹

⁶ For example, since the passage of "Operation Gatekeeper" in 1994, all personnel engaged in administrative services related to immigration and naturalization must first work for at least one year in border enforcement.

⁷ This expanded wave of Latin American migration is the result of dispossession and deteriorating economic opportunities at home due to global austerity measures and trade rules, a reality which goes unnoticed in US immigration debates. In October 2006, the House of Representatives passed legislation making undocumented immigrants and those who assist them felons and the Bush Administration signed legislation authorizing the construction of 700 additional miles of fence along the US–Mexico border.

⁸ The National Agricultural Workers Survey (NAWS, 2002) estimates that undocumented immigrants represent 52% of the national workforce, while the United Farm Workers suggest the figure may be as high as 85–90% in California.

⁹ In fact immigrants are the most rapidly unionizing segment of the workforce in multiple sectors. Examples include recent organizing and contract wins by the Service Employees International Union (Justice for Janitors), UNITEHERE (hotel campaign) and the Farm Labor Organizing Committee (FLOC), and heightened resistance in the meatpacking industry as a result of punitive measures aimed at immigrant workers. Also, as Mitchell (1996) shows, labor mobility can produce both instability and leverage for workers in bargaining over the distribution of surplus value.

² California growers pioneered the practice of externalizing risk of unionization and managing labor flow through the use of farm labor contractors, a practice that has become widespread throughout agricultural regions (Villarejo, 1989).

³ Agricultural capital's response has always been swift and often violent. Mitchell (1996) provides an overview of the period from 1913 to 1942.

⁴ Deterritorialization of unionized and relatively well paid food processing functions during the 1980s and 1990s has also undermined the position of field workers by eliminating employment alternatives and reducing household incomes.

⁵ In California, this led to the appointment of conservative judges and an Agricultural Labor Relations Board sympathetic to employers.

Instead this phenomenon must be viewed in relation to the multiple factors constraining the realm of possibility for farm worker empowerment.

While these developments reflect the imposition of a neoliberal capitalist agenda on an increasingly global agro-food system, we argue that this broader political-economic context must also be considered in relation to the historical development of California's farm worker and sustainable agriculture movements. The foreclosure of possibility for organizing workers at the point of production is determined, not only by power asymmetries between agricultural capital and labor and the state's abdication of regulatory responsibilities under neoliberal rollback as discussed above, but also by the failures of institutions representing farm workers and the agrarian conservatism of the sustainable agriculture movement.

While the legacy of union activity continues to shape California's agricultural labor relations, its decline must be understood as at least partially self-inflicted, given its active withdrawal from worker organizing and consequent loss of touch with its critical base. The UFW's turn towards policy and community support initiatives (strategies that were vital to its organizing successes during the 1970s¹⁰) has undercut the resources available for member organizing and workplace action. Moreover, a lack of internal democracy, failure to develop rank and file leadership (Bardacke, 1993), and inability to consider workers' own forms of self-organization, for example through migrant networks (Fox and Brooks, 2002), has seriously hindered the union's capacity to meaningfully represent the voice of farm labor and has substantially undermined its power. UFW membership has declined from its mid-1970s peak of approximately 80,000–27,000 today. Given the current climate of US anti-unionism (itself part and parcel of the neoliberalization process), the union's role in undermining public perceptions of its work is particularly troubling. In many respects the union has allowed powerful grower opposition to effectively characterize it as an unrepresentative and polarizing force. We highlight these internal contradictions because they directly inform our analysis of the lack of farm worker representation in third-party certification.

A parallel trajectory running through this history is the development of an alternative post-productivist agro-food movement, established for the purpose of resisting agribusiness dominance and promoting sustainable farming practices (Allen, 2004). Despite having no entrenched agrarian society (Guthman, 2004a; Walker, 2004), California harbors a deeply-rooted, although somewhat paradoxical, agrarian vision. While considered the birthplace of the US sustainable agriculture movement, California's organic production has largely followed the economic models of conventional agriculture (Guthman, 2004a) and the movement itself has failed to promote a holistic vision of sustain-

ability. In fact, a stunning majority of organic farmers suggest that labor practices should not be considered as a dimension of organics (Allen, 2004; Shreck et al., 2006). The sustainable agriculture and farm worker movements can both be viewed as counter-movements formed to resist the negative consequences of the global agro-food system (Polanyi, 1944). However, they are marked by disparate traditions and goals and have not historically collaborated in meaningful ways, exacerbating the challenge of reconciling farmer and farm worker interests through certification.

As we see, the roll-back of protective labor regulation, roll-out of more punitive and intrusive immigration and border policy, the evisceration of agricultural unions, and a restructuring of agro-food production networks and labor processes are the significant factors defining California's current context. We have highlighted these mutually constitutive and multi-scalar developments in order to elucidate the considerable constraints under which third-party certification has emerged as an alternative to class-based struggle at the point of production or in the legislative arena. In the following section we consider third-party certification as part of two broader trends: (1) the shift from government (based on democratic political access) to governance and (2) the rise of a consumer-based politics.

3. Social certification as neoliberal governance

Our research brings together insights from agro-food studies focused on commodity systems and production (McMichael, 2004; Friedland, 1991; Friedmann, 1991), consumption-focused literature, (Jaffee et al., 2004; Goodman and Dupuis, 2002), certification studies (Muttersbaugh, 2005, 2002; Bartley, 2003; O'Rourke, 2003; Reynolds, 2000), and a growing body of literature on neoliberal capitalism and governance. Scholars have highlighted key features and consequences of the neoliberal capitalist agenda through the lens of urban (Brenner and Theodore, 2002; Keil, 2002; Peck and Tickell, 2002; Swyngedouw, 2005a) and environmental (Hollander, 2004; Mansfield, 2004; McCarthy and Prudham, 2004; McCarthy, 2004; Prudham, 2004; Robertson, 2004; Heynen and Robins, 2005; Robbins and Luginbuhl, 2005; Swyngedouw, 2005b) governance. While neoliberal rollback provides the contextual framework for our research, our empirical analysis explores the ways in which third-party certification and labeling can be viewed as a form of "roll out neoliberalism" (Peck and Tickell, 2002), whereby the institutional forms that replace or fill in the gaps opened by state withdrawal from regulatory and safety net functions define the neoliberalization process as much as the rollback.

Following the material and discursive successes pioneered by anti-sweatshop and fair trade activists, demands for "socially responsible" food have emerged to challenge the corporate agro-food regime, for example the Coalition of Immokalee Workers' boycott of Taco Bell and campaign targeting McDonalds and OxFam's targeting of coffee retailers. In California, calls to incorporate farm worker

¹⁰ The UFW grape boycott provided the symbolic, if not material, basis for its successful campaigns during the 1970s.

justice issues into new and/or existing agricultural certification and labeling schemes have taken many forms and operate at multiple scales, reflecting concerns about *both* multinational corporate control of the food system and an increased awareness that the sustainable agriculture movement has failed to incorporate social dimensions into its calls for sustainability. Historically, consumer–labor alliances have been pursued due to the weakness of organized labor in the strategic spheres of workplace and legislative politics, the union label being the first consumer label (Frank, 2003). While such alliances have often failed to meaningfully involve rank and file workers, the move to voluntary third-party systems makes the potential for farm labor representation even more problematic.

Scholars have highlighted the emergence of third-party labor standards and auditing systems in multiple sectors of the global economy as part of a flexible regulatory framework in which the appropriate role of the state is viewed as an enabler of privately directed governance rather than as a progenitor of traditional command and control regulation. Such systems seek to address the regulatory failures engendered by global trade, liberalization, and the imperatives to reduce regulatory burdens and promote capital flows (Gereffi et al., 2001; Cashore, 2002; Bartley, 2003; O'Rourke, 2003). Others have highlighted the contradictory nature of privatized governance (Swyngedouw, 2005a). In certification, these tensions are manifest in an increased emphasis on transparency and accountability, which belies a fundamental lack of democracy inherent in third-party standards and monitoring.

Certification and labeling have been touted as strategies to promote legibility by providing consumers with information about the conditions under which the food they purchase has been produced (Allen and Kovach, 2000). The label has come to be viewed as at least a partial antidote to the commodity fetish or as a solution to the problems caused by capitalist production. To some extent, they have become important signifiers for “reflexive consumers” (Dupuis, 2002). While predicated on linking consumption choices with production conditions, certification remains an indirect link, requiring a level of trust and understanding about what the label means. Yet, as Guthman (2004b) has shown in the case of organic labeling, the price premium or economic rents attached to the labeled product are also critical to understanding certification and the wider political economy of the parallel markets they create for those willing and able to “vote with their dollars”.

We agree with scholars who question the transformative potential of third-party certification for production processes (Getz and Shreck, 2006; Jaffee et al., 2004; Mutersbaugh 2002; Raynolds 2000; Guthman 1998). First, these schemes require the *voluntary* participation of producers and consumers, suggesting a peaceful co-existence between the certified or “socially responsible” and non-certified, and presumably “socially irresponsible”, product (Guthman, 2003). In addition, third-party certification buys into the neoliberal logic of deregulation and privatization of regula-

tory functions in favor of “voluntarist frameworks with non-binding standards and rules that rely on self-regulation and greater participation from citizen coalitions, all with varying degrees of capacity and accountability” (McCarthy and Prudham, 2004, p. 276). As a mode of “governance-beyond-the-state” (Swyngedouw, 2005a) relying both on NGO actors to determine and verify measures of social accountability and on consumers to validate them, questions of participation and representation are critical.

The shift from governing production relations through democratic decision-making to market signaling also reflects an acceptance of the neoliberal logic of devolution of responsibility from the state to the consumer. Social certification thus conflates citizenship with consumerism (Mutersbaugh, 2005; Guthman, 2003; Dean, 1999) and engenders a potentially false confidence in the political possibilities of consumption. To consider the potential for consumption to qualify as political (see Goodman and Dupuis, 2002), we explore how activists view third-party certification vis à vis modes of organizing focused on altering power relations in production, specifically unions and labor regulation. While an embrace of consumption politics does not necessarily replace these forms, and while some research suggests the potential for complementarity among them (O'Rourke, 2003; Gereffi et al., 2001), the extent to which the label comes to be viewed as an adequate substitute for farm workers' collective action and involvement is a central concern, precisely because farm worker voices are virtually absent from third-party certification initiatives.

Thus far, we have focused on social certification's position within the framework of a neoliberal political-economic order and the wider shift from government to governance. Given the apparent lack of alternatives for achieving social justice in agriculture, it is not surprising that activists would view certification as a possible way out of this seemingly intractable framework. On the one hand, activists are trying to identify viable mechanisms through which to resist the dominant agro-food regime. On the other, the widespread acceptance of this privatized and individualized governance form calls into question the potential for altering the social relations of production, particularly where labor becomes the object of action rather than a participant in the process. We now turn to an analysis of specific efforts underway in California to further explore the dialectic between third-party certification's resistance to and reproduction of neoliberal forms and subjectivities.

4. Certification comes to California: the politics of the possible

Through research on key actors and institutions involved in bringing social certification to California's agro-food system, we explore the mutually constitutive relationship between the political economy of agricultural production and the micro-politics of agro-food and agricultural labor

activism in California.¹¹ We ask if social certification actors view their efforts as creating “the foundations for broader social or political challenges to the conventional global agro-food system and the overarching set of corporatist and capitalist relationships in which that system is embedded” (Jaffee et al., 2004, p. 171; see also Shreck, 2005). Or do they view consumption-oriented change as an alternative form of politics (Goodman and Dupuis 2002: 17)? Our conversations with actors in the certification arena suggest that support for third-party certification is not merely about actors favoring a consumption-based approach in lieu of other modes of social change. It is much more about actors’ subjectivities, which are both shaped and constrained by the dominant trajectories of neoliberalism, agro-food restructuring, and labor politics discussed in the previous section.

With its history of sustainable agriculture activism and highly developed order of agrarian capitalism, California has become a site of debate and experimentation around certification, just as it has come to be viewed as a potential market for existing programs. Emergent efforts range from attempts to translate the global supply chain management and labor audit model (originally developed in manufacturing) to the agro-food context, to efforts to establish a domestic fair trade (DFT) label predicated on small-scale production. Although *certified organic* and international *fair trade* are the only two labels widely available to California consumers, current activity suggests a more varied certification landscape in the future. The past decade has witnessed the proliferation of eco-labels to upwards of 150, producing competition among would be certifiers and causing many to worry about the dangers of label fatigue among consumers.¹²

In the following section, we introduce key actors and institutions within the nascent certification movement in California. We then proceed with an analysis of social certification programs, discourse, and practice. While multiple trajectories and divergent perspectives are apparent, and while various actors attempt to come to terms with neoliberal realities in different ways, we find that the social certification spectrum holds more commonalities than it might appear at first glance.

4.1. Key actors and institutions

Our research focuses on five initiatives relevant to California’s agricultural context: the Agricultural Justice Pro-

ject (AJP), Domestic Fair Trade Working Group (DFTWG), the Food Alliance (FA), Social Accountability in Sustainable Agriculture (SASA), and Business for Social Responsibility’s Food and Agriculture Working Group (BSR-FAWG).¹³ While these initiatives are nationally and internationally focused and are at varying stages of development, they all have engaged in on the ground discussions in California. In addition to the specific initiatives, we also consider the role and perspective of a broader set of actors within California’s sustainable agriculture and farm labor advocacy movements, including: The Roots of Change Council (ROC) and its Sustainable Food Systems Partnership, the California Coalition for Food and Farming (CCFF), and the California Institute for Rural Studies (CIRS).¹⁴ Our goal is not to assess the relative viability or legitimacy of schemes, but to identify the range of players and some key categories through which they can be differentiated. Fig. 1 locates these efforts on a continuum, based upon differences in goals and principles, approach to production–distribution–consumption networks, and strength of standards and monitoring. However, this characterization is complicated somewhat by overlap and contradiction among the program goals and trajectories.

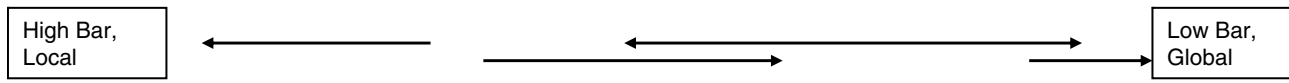
The initiatives take different approaches to the following questions: (1) Should third-party monitoring and labeling target large-scale production and global agro-food supply chains (as with the SASA project and the BSR-FAWG) or focus on linking small-scale, localized production with the notion of socially responsible labor practices (as with the AJP and DFTWG)? (2) Is the goal to produce deep, meaningful change in a segment of production (AJP), to develop standards and audit procedures that enable wider access and coverage (FA and SASA), or to deal with issues of quality, risk management, and brand protection (BSR-FAWG)? The AJP has developed a “high bar” model, linking buyer, producer, and worker rights and responsibilities with the goal of ensuring environmentally and socially responsible practices, a fair price for producers, and supply chain transparency/equity. The FA has positioned itself as enabling “agriculture in the middle” to access institutional and wholesale markets (such as Sysco, Bon Appetite, and Kaiser) and government procurement (Hamerschlag, 2005). Comprised of corporate members (including Archer Daniels Midland, Chiquita, McDonalds, and Monsanto), the BSR-FAWG is self-admittedly not concerned with the sustainability of small-scale, family farming (or even “agriculture in the middle”).

¹¹ To identify the ways in which social certification embodies neoliberal governance and subjectivity, we draw from written materials related to various certification schemes, including established standards, principles and reports developed by various stakeholders, as well as both authors’ participation in two pilot social audits on a California farm, participant observation in various sustainable agriculture meetings, and a series of eight (8) interviews conducted with actors involved in the certification initiatives and the broader sustainable agriculture arena.

¹² See Hamerschlag (2005). Certification scholars, including O’Rourke (2003) and Courville (2004) have also discussed the potential for a competitive labeling environment to lead to stronger standards or “sustainability light”.

¹³ For information about AJP, see: and FA see: www.foodalliance.org; SASA’s participating certifiers included the Fair Trade Labeling Organization (FLO), the International Federation of Organic Agricultural Movements (IFOAM), the Rainforest Alliance/Sustainable Agriculture Network (RA/SAN), and Social Accountability International (SAI). For information see: <http://www.isealliance.org/sasa/>.

¹⁴ For an analysis of ROC see cite withheld, forthcoming, this issue. For more information on the specific mission and work of these groups, see: http://www.rocfund.org/projects_current.html, <http://www.calfoodandfarm.org/> and <http://www.cirsinc.org/>.



	Agricultural Justice Project	Food Alliance	Social Accountability in Sustainable Agriculture	Business for Social Responsibility – Agriculture Working Group
Goals and Interests Represented	Farmers and farm Workers, issues and goals are seen as mutual	Farmers and farm workers, where issues and goals overlap	Farmers and farm workers, where goals/issues overlap, and where goals/issues diverge	“Socially responsible” growers, suppliers, shippers, branded multinationals
Target Market (producers and consumers)	Small scale farmers; Local, retail, short supply chains with few intermediaries	Mid size growers; institutional buyers and branded companies; also provide label for differentiation in retail markets	Smallholder producers and large scale operations; interested in inserting smallholders into global supply chains	Global marketplace
Labor Standards	High bar, includes wages, working conditions, and rights; also requires fair price for farmers.	Minimal labor standards; no collective action or rights-based language	Wages, working conditions, and rights. Only FLO includes fair price to farmers	Varies, with industry-led codes references to workers often focused on training and product quality
Audit and monitoring process	3 rd party certification; Includes farmers, farm workers and farm worker organizations	3 rd party certification; Includes farmers, not farm workers; potential for auditors to interview farm workers where violations are suspected	3 rd party certification; Includes farmers and farm workers; worker inclusion can be problematic.	3 rd party certification and/or industry self-monitoring

Fig. 1. Social certification schemes in California agriculture.

As we see, social certification has produced significant debates about how best to promote social accountability in agriculture, and initiatives have taken many forms. We explore these continuities and differences in the following sections, highlighting the contradictions posed by certification schemes and actors' resistance to and reproduction of neoliberal tendencies in the agro-food system.

4.2. Neoliberalism meets agrarianism: social certification for whom?

While some social certification programs focus on large-scale production and distribution systems (in particular BSR and some of the SASA member groups), a largely *agrarian* perspective pervades the discourse and thinking around social certification in California. Indeed, some of the current efforts have grown out of the sustainable agriculture movement, whose vision of social justice is shaped by a conception of a utopian agrarian society composed of small farms and only family labor (see Guthman, 2004b; Shreck et al., 2006). At the intersection between articulations of agrarianism and the constraints of neoliberalism lies a critical question: *whose* interests are served by social certification, and can farmer and farm worker interests adequately be represented within the *same* voluntary system? Conceptions of social justice for farm workers shaped by agrarian discourse attempt to simultaneously address the

need of small farmers and farm workers, groups that have both been squeezed in an increasingly concentrated and globalized agro-food system, albeit in different ways. In doing so, however, these efforts sidestep important structural *differences* between agricultural capital and labor, a reality that remains concealed within certification's win-win, consensus-based discourse. The trickle-down notion that garnering a fair price (or price premium) for farmers will automatically translate into improvements for farm workers goes virtually uninterrogated.

Discursively, the language of agrarianism and importance given therein to the “family farm” versus class-based interests of farm workers (which are at the root of collective bargaining strategies) has shaped activists' strategies. We highlight here the privileged position of farmers within certification discourse, the fundamental acceptance that they are best equipped to determine the viability of specific labor practices on behalf of their workers, and the assumption that they want to “do the right thing” with respect to labor. This perspective functions to further a key neoliberal conceit by eliding class distinctions between farmers and farm workers within social certification debates. With this larger problematic in mind, we now turn to the specific ways in which the farmer–farm worker, consensus-based model plays itself out among the various certification efforts documented.

The philosophy of the Food Alliance (FA) strongly articulates this vision. Their goal is to create common ground

between farmers and farm workers by identifying and working only within the spaces where their respective interests intersect, to “merge the goals of growers and workers and create a sense of shared destiny and design solutions accordingly”. An FA representative stated that FA standards cover the terrain “where the circles overlap between farmers and farm workers” (interview, April 5, 2006). Not surprisingly, FA’s labor standards are weak, with no requirements on wages or working conditions, much less labor representation, and their audit process does not include farm worker interviews. The FA acknowledges that this position has created tensions with labor groups, with whom they have reciprocally and politely “agreed to disagree” and at least one member of their stewardship council has resigned. The rationale for “flexible” standards reflects the essential problematic posed by such a voluntary system: the certification body must avoid alienating farmers and instead “meet them where they are at” (interview, April 5, 2006) to garner and sustain their interest in certification.

In interviews with other actors who have worked to build coalitions between farmers and farm worker organizations, the FA’s sentiments about the potential for grower backlash (particularly around positions of support for public regulation or collective bargaining) were echoed. One interviewee suggested wanting “to see a more collaborative approach and more enlightened growers who understand that working collaboratively (with farm workers and farm workers organizations) is in their best interest” (interview, March 29, 2006). In the CCFF, a coalition of sustainable agriculture and labor groups in California, debates emerged over their statement of principles on social justice, which was ratified by both sustainable agriculture and labor groups on their board. Labor groups in the coalition never thought the standards were high enough because they were dominated and watered down by grower members. Relatedly, discussions of how to implement these standards ended after serious disagreements between grower and labor members of the coalition arose over proposed California legislation for binding arbitration for workers (interview, April 5, 2006).

The AJP is similarly premised on the belief that activists must form alliances between small farmers and farm workers in order to achieve meaningful improvements in farm labor conditions. The project demonstrates an implicit acceptance of the notion that small-scale family farmer and farm worker interests can be reconciled within a parallel market, if not within the mainstream agro-food system. However, unlike many initiatives, its proposed standards do not compromise on the question of collective bargaining rights and labor representation, a factor that has created obstacles to the initiative being accepted within wider efforts to develop a domestic fair trade label. Within the DFTWG, the centrality and thorniness of defining family farm requirements has largely overshadowed questions about how to operationalize a vision of equity and justice for agricultural labor, although labor rights are addressed within the group’s principles.

The BSR Ag Roundtable presents an interesting contrast to the importance given to the “family farmer” in the social certification initiatives emerging from sustainable agriculture circles. At a meeting of the BSR in Northern California, several participants were unable to agree that they would mind a world without small farmers. Ironically, the fact that these actors are not constrained by the (all too often) conservative agrarian rhetoric present in sustainable agriculture circles liberates the debate to potentially move in more progressive directions. It certainly opens up the arena for social certification to benefit the vast majority of farm workers, who do not work on small, organic “family” farms. On the other hand, one must resist the temptation to overestimate the possibilities this presents, given the thoroughly neoliberal capitalist imperatives driving the food multinationals towards hyper-consolidation within the industry. The more likely scenario presented within this context is one of no small-scale farming, universal wage labor production, and weak, unverifiable, voluntary labor standards.

4.3. From confrontation to consensus: taking the politics out of the political

Social certification underscores the ways in which the broad constraints of agricultural restructuring and neoliberal policy seemingly preclude a more confrontational politics between labor and capital in the workplace or political arena. In this section we examine the ways in which neoliberal discourse and practice work *through* the social certification movement, implicitly challenging actors to redefine (and to potentially transform) the very notion of what is political. While we found significant variation in thinking about certification vis à vis union and political organizing, we also found widespread (although not wholesale) acceptance that market-based approaches (and thus privatized regulation) can be a viable, non-contradictory alternative to state intervention and unionization. On the one hand, many actors *choose* to adopt a decidedly “anti-politics” bias, distancing themselves from more confrontational social change strategies. On the other, many explicitly view consumption as a political act, without questioning the *de-democratizing* potential of such reliance on market signaling. We consider these two elements: *depoliticization* and *de-democratization* in turn.

Although certification actors have appropriated a language of social justice, many seem to want to depoliticize their work, preferring consensus or ‘opportunity-based’ approaches to improving labor practices. This is reflected in a broader discursive shift towards notions of social accountability and responsibility. Central to this is the strategy of highlighting the best practices of farmers who are philosophically inclined to be responsible employers, to serve as a model for growers’ enlightened self-interest. For example, the FA’s approach is to “provide positive market incentives for (farmers) who are using progressive practices and ... who are aware that the world and the market (are) watching” (interview, April 5, 2006). Through this lens, the

continued and pervasive hyper-exploitation of agricultural labor is attributed to bad actors, rather than to the internal logic of capitalist production relations or the evisceration of the regulatory state.

This model contrasts with organizing at the point of production or in the public sphere to prevent worst practices, which becomes, at best, unrealistic in the current political climate and, at worst, antithetical to consensus-based change. Indeed, many actors with whom we spoke expressed a feeling that public regulatory and collective bargaining demands are divisive. One FA representative commented that the “singular focus” of farm worker organizations on collective bargaining is so “polarizing” that “it undermines [FA’s] efforts to recruit growers” (interview, April 5, 2006). Others worried that farm labor advocates and representatives tend to “highlight the negative”. Certification is thus offered as a solution to the seemingly intractable tensions between farmers and farm workers that arise through organizing and collective action. In California, these tensions are complicated by the UFW’s position in agricultural politics, as many farmers can credibly make the case that the UFW is more confrontational and problematic than the strategy of collective bargaining itself.

In addition, some actors view the state as part of the problem, suggesting that certification systems must be “taken back” from the government (DFTWG, 2005). Paradoxically, actors have good reason to repudiate state involvement in this arena, given that organic standards were substantially weakened due to the intervention of the US Department of Agriculture. Instead of enactment or enforcement of labor or environmental regulation, many interviewees embrace the notion of public–private partnerships, whereby reduced regulatory and tax burdens could generate incentives for producers to pursue third-party certification. These actors view the state’s potential contribution in the context of procurement policies, incentives for certification, and building “market access”. For example, interviewees raised the possibility of utilizing certification as an incentive for accessing lower workers compensation rates, low-cost health insurance, and public sector contracts (interviews, April 2–3, 2006). We argue that however problematic the USDA’s role in undermining organic principles with the National Organic Standard, the marginalization of democratic political processes and the subordination of the political sphere to market forces poses a much greater challenge to the goal of social accountability in the agricultural sector. Therefore, giving up on the state, or otherwise limiting its role, is a potentially risky response.

In addition to these depoliticizing tendencies, the third-party certification initiatives we investigated contribute to the “democratic deficit” of non-state governance forms, which Swyngedouw (2005a) argues represent a “restructuring of the parameters of political democracy”. In the case of certification this plays out with respect to lack of farm worker involvement and voice in standard setting and monitoring. For the most part, third-party schemes seem to want to fix labor practices on behalf of workers without

including them. The AJP was the exception, although it remains unclear if the initiatives’ efforts to meaningfully include labor will pay off in California, particularly given the lack of viable institutions representing farm workers.

Third-party certification also calls into question the limits to consumption as a basis for action, as only those with resources and access can participate through market signaling. In some instances activists have effectively linked individual acts of consumption with collective action. However, we found that many actors expressed a belief that formation of informed consumers is inherently political and that “knowing where our food comes from” is a sufficient condition to produce meaningful social change. This assertion of consumer rights and responsibilities resonates strongly with neoliberal notions of individual choice and market signaling. While interviews with some actors demonstrated their implicit understanding of the limits to consumption-based change, other actors seemed to believe that market mechanisms have the potential for transformative change of the food system. Further discussion, however, indicated a narrow view of what “system change” meant – a view, we argue, shaped largely by the omnipresence of the neoliberal project. Certification discussions occurring under the auspices of the ROC Council reflect this narrow view of system transformation, which does not take into account power imbalances based on class position (Guthman, this issue).

In spite of this overwhelming confidence in the power of individual choice through the market, we found tensions among activists with respect to the potential for the *processes* inherent in social certification to ultimately achieve social justice goals. Some indicated frustrations about a “more winners than losers” approach and about concomitant assumptions that most employers want to do the right thing. Proponents of the high bar approach noted that “meeting growers where they are” is a mistake and potentially counterproductive. Our research suggests that those most committed to justice for farm workers (as opposed to a just price for farmers) recognize the value of certification as a tool, rather than an end in itself. The AJP, in particular, states that labeling cannot be a substitute for public policy improvement or farm worker collective action. They assert that “[I]t would be a grievous error to imply that the marketplace alone could adequately ensure social justice or the protection of human rights” (Henderson et al., 2003, p. 8). Acknowledging that social standards are happening with or without the voices and involvement of workers, they are working to ensure that “rights-based” initiatives go forward, which truly represent *both* workers’ and small farmers’ interests. In the following section we explore questions of farm worker representation and participation with respect to the centerpiece of social certification: the labor audit.

4.4. Can the social audit adequately represent farm worker interests?

Through on-farm site auditing, third-party certifiers measure a farm’s performance against established social

standards or criteria, utilizing techniques such as examination of payroll and related paperwork, worksite inspections, and worker and management interviews. Just as market-based strategies have the potential to conflate consumerism with citizenship, the audit process has the potential to conflate so-called transparency and accountability with justice and empowerment. In seeking such transparency, even well-intentioned certification agents risk developing systems that at best leave workers' structural position intact and, at worst, undermine their empowerment. If the social label is swiftly becoming the new union label in the eyes of consumers, the social relations implicit in the label are hardly based on equivalent principles or power dynamics. In this way, the audit process itself can be viewed as a neoliberal technology, whereby transparency and accountability as verified by NGO professionals become the end goals, rather than shifting power relations or promoting labor rights.¹⁵

Strathern's (2000) treatment of "audit culture", the processes by which the invisible is made visible, suggests that the analytical categories adopted by experts, and through which information is translated, conceal certain truths as they reveal others. Like Strathern, we question the technology of transparency embedded in the audit as a useful procedure for understanding not only how certification agents operate, but also how social accountability is measured. Our research, therefore, also interrogates the potential for farm labor representation and empowerment through the audit process.

Given the dearth of labor involvement, social standards developed by NGO professionals often fail to adequately reflect workers needs or interests. For example, during one pilot audit, a certification representative indicated that her organization's standards prohibited certifying farms that employ undocumented workers on the principle that employers must obey all national laws and that undocumented status renders workers more vulnerable. While this standard reflects a desire to challenge dominant exploitive practices, it fails to take into account that the vast majority of California farm workers are undocumented and thus denies them the possibility of being covered under certification. We raise this concern to point out that: (1) the social standard and monitoring model itself constrains certification agents' ability to deal with on-the-ground realities and (2) the way such issues do or do not get resolved is subject to the authority of certification agents, generally without consultation of the affected workforce.

Ironically, some actors take pains to acknowledge the impact of audit participation on farmers without recognizing that the audit process has the potential to replicate capital-labor power asymmetries and to leave workers exposed to employer retaliation (interviews, April 2–5). This is true particularly in long supply chains where spatial distance

can undermine accountability (O'Rourke, 2003). Indeed, auditors have been known to relentlessly question workers, for example about their immigration status, during interviews. Certifiers' failure to consider the intrusiveness of the audit process from the perspective of labor, and their unabashed embrace of its utility and efficiency, supports the claim that audit culture is underpinned by neoliberal norms. Other certification agents asserted that they prefer not to "expose" workers to retaliation, and thus they exclude them from the audit process altogether, essentially allowing for employer self-certification in the arena of labor practices (interview, April 5, 2006).

One representative of the high bar approach asserted the importance of moving beyond the "neoclassical model" of developing a checklist, sending an inspector to fill it out, and returning it to the office to evaluate the farm based on this list (interview, April 5, 2006). Still, reliance on the audit to achieve product legibility remains the focus, and it is unclear if a viable space can be created for worker voices and rights-based mobilization. We also question the extent to which ensuring adequate farm labor representation in the certification process might lead to forms of collective voice or action, as the process requires organizational forms and institutions with the capacity and commitment to support labor's interest in the workplace. While worker-rights trainings, grievance procedures, and ongoing communication all have the potential to create openings, the UFW's failure to meaningfully engage workers in its own operations poses a substantial challenge to the goal of making certification a vehicle for promoting farm worker justice in California.

4.5. *Working within or against the market?*

Thus far we have argued that activists' perspectives around certification reflect the pervasiveness of neoliberal ideology about individual consumer choice, private governance and the market as the arena to deal with social and environmental concerns. We now return to the context of agricultural restructuring and the scale of agro-food commodity chains to consider the tensions articulated among activists with respect to the purpose of certification. Our findings suggest that social certification actors see themselves as operating both "*in and against*" the global, neoliberal market system (Shreck, 2005). While social certification activists almost universally see their efforts as a counter to the logic and imperatives of global supply chains, their actions and visions are clearly shaped and constrained by the dynamics and contradictions of a hyper-consolidated, globalized agro-food regime. The duality of the two food systems – the mainstream corporate one and alternative local ones, is the centerpiece of this dynamic, in which small-scale production and circulation networks are equated with sustainability.

Many efforts, most notably the AJP and CCFF, are specifically concerned with carving out alternative, *local* spaces outside of the *global*, neoliberal food system. As such, they imply that label legitimacy hinges on spatial, as well as

¹⁵ For discussion of the professionalization of NGO activism, see Bondi and Laurie (2005), Dolhinow (2005), Mutersbaugh (2005).

social and environmental, provisions. They envision that social certification, if done “well,” can create “meaningful and radical change” and serve as a model against which the mainstream food system can be juxtaposed (interview, April 5, 2006). The AJP is the most explicit about its commitment to a short supply chain, local model. The group’s opposition to operating in the mainstream food system stems from an assessment that other approaches (including several organizations involved in the SASA project and Food Alliance) suffer from certifiers’ willingness to compromise in the face of opposition from agro-food capital, thus rendering their labor standards meaningless (interview, April 5, 2006).

This global/local dialectic is the result of the rescaling of agro-food commodity chains, a process that has largely focused on changing the institutional arrangements of commodity circulation. In fact, concentration has occurred in the retail and wholesale sectors, rather than in on-farm production. Under this system of global sourcing, California growers now compete with producers from other export platforms such as Mexico and, increasingly China, where input costs for on-farm production are exponentially reduced. When faced with these realities, opting out of mainstream markets or eschewing them as targets for social change activism appears quite reasonable. Yet, while the global system does entail significant social and environmental costs, these have not been adequately accounted, a fact that undermines arguments that large-scale or global commodity chains are inherently destructive. In addition, we argue that “local” is not a satisfactory proxy for sustainability, given that small-scale production can be equally exploitive of land and labor. At best, the creation of niche markets leaves the mainstream agro-food system unchanged. At worst the certified niche or parallel market is easily co-opted, given its failure to challenge the logic of market fundamentalism.¹⁶

In contrast, the FA views its role as affecting the mainstream market and, more importantly, believes that incremental change is the most effective strategy for bringing about food system change (interview, April 5, 2006). Similar to the FA in philosophy, but operating in the international arena, the SASA project aims to support small-scale production within the realities of a global agro-food complex. The notion of facilitating smallholders’ insertion into global supply chains contrasts starkly with the California sustainable agriculture movement’s emphasis on short supply chains and local food sheds.

Discussions aimed at creating a domestic fair trade program underscored the challenges posed by this local/global dialectic. While some actors assert that “there cannot be social justice unless the food system is as localized and regional as possible,” others suggest small-scale production is sufficient. The DFTWG has devoted extensive time to

defining the meaning and geographic scope of the “local” and to defining the “family farm”. Delimiting spatial boundaries creates an implicit tension between supply chain management and ethical sourcing in long supply chains and the goals of the “buy fresh, buy local” movement. If and how the DFTWG reconciles these contradictory visions remains to be seen. What is of particular interest to us here is the fact that, while all actors within the certification arena face significant challenges in the neoliberal political-economic order, farm workers continue to be marginalized, even within the social justice discourse. The direct beneficiaries of social labeling are farmers. To the extent that they are unwilling to incorporate meaningful labor rights and protections within these voluntary schemes, and to the extent that third-party actors appropriate the class position of farmers, exploitation will also be perpetuated in the certified, niche realm.

5. Conclusion

Through an exploration of the macro forces shaping the agro-food system and the micro-politics of social certification activism in California, we find that certification plays a contradictory role as new governance form, market mechanism, and social cause and that this is reflected in activist thinking about the possibilities for change in agricultural labor relations. This reflects a highly circumscribed realm of possibility, which is shaped by the consolidation of the agro-food system, the shift from government to governance, and the particular character of California’s farm worker and sustainable agriculture movements. In this context, certification practice and discourse have the potential to reproduce barriers to achieving farm worker justice.

Specifically, the intersection of agrarian and neoliberal discourse plays heavily into shaping perspectives on whose interests are represented in certification, who is doing the polarizing, and who should be involved in establishing a rubric of justice at all. Most striking in this regard is the pervasiveness of the view that unions and efforts to promote state regulation are polarizing, while consensus and market-based models can adequately reconcile the interests of farmers and farm workers. California’s historical context of farm worker struggles and the failures of the UFW have, in many ways, set the stage for the current challenge of including farm workers in third-party certification initiatives. While the decline of agricultural unionism in California may suggest a failure of farm worker institutions and the collective bargaining model, the void created cannot be filled simply by market mechanisms. The social label is an inadequate substitute for the union label, yet its proliferation may foreclose the possibility of other forms emerging, which facilitate the collective action and agency of labor by prioritizing the agency of consumers.

Our analysis demonstrates how sharply neoliberal rollback has constrained the politics of the possible and how deeply neoliberal conceits have penetrated into agro-food activism, particularly with respect to the manner in which

¹⁶ For a thorough analysis of how this plays out in the organic industry, see Guthman (2004a).

class differences are concealed and farm worker voices are systematically excluded in the certification process. We conclude that certification presents an incomplete and inadequate response to farm workers' grave situation, including eroding wages, exploitative conditions, and treacherous journeys across a militarized border zone. The persistence and scope of farm labor exploitation demands that social certification efforts in California take a more reflexive look at the implications of a shift from "rights-based" organizing, rooted in notions of collective action, to "opportunity-based" organizing, rooted in notions of individual choice, for determining the future trajectory of the movement for social accountability in agriculture.

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